

Memo.No.623/Spl.C/A1/2008-1, G.A. (Spl.C) Dept., dt.15.10.2008 regarding instructions on submission of reports in A.C.B / Vigilance Cases and action taken reports thereon.

Subject Heading : Public Servants - Anti Corruption Bureau / Vigilance Cases - Investigation - Submission of reports - Action on the Reports - Certain instructions - Issued.

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Ref : 1. G.O.Ms.No.415, G.A. (Cabinet) Dept., dt.05.09.2005.

In the G.O. cited, Government have constituted a Committee of Group of Ministers to examine the issues raised by the Confederation of Revenue Earning Departmental Associations, A.P., Hyderabad relating to Anti Corruption Bureau Cases and other disciplinary matters with the following Ministers:-

1. Minister (Finance) ... Chairman
2. Minister (CT&Excise) ... Member
3. Minister (Agriculture) ... Member

2. After detailed deliberations with the representatives of the Associations, and the concerned Heads of Departments / Departments on the issues raised by the representatives of the Confederations, the Group of Ministers have submitted a report containing recommendations on the issues for consideration of the Government. The Government, after careful examination,

have accepted the recommendations of the Group of Ministers. The following instructions are issued in respect of certain recommendations relating to ACB / Vigilance Cases:-

- (i) Investigation in respect of the registered cases shall be completed within six (6) months ;
- (ii) After receipt of the final report of the Investigating Agency, the Department concerned shall examine further within one month and take a decision as to entrust the case;
 1. either for prosecution; or
 2. for departmental action; or
 3. for placing the accused officer on his defence before the Tribunal for Disciplinary Proceedings; or
 4. for closure of the case and seek the advice of A.P. Vigilance Commission.
- (iii) While assessing the value of the properties in all cases, the Investigating Agency shall follow a scientific and systematic approach. Assessment of the value of movable and immovable properties may be done taking the following into consideration:
 1. The value of the properties on the date of the acquisition.
 2. The details filed with taxation authorities and in the property returns shall be given due weightage while calculating the disproportionate assets.
 3. The properties of kith and kin of the Accused Officer should not automatically be added to the properties. Proper analysis of the sources of such assets of kith and kin

and friends should be undertaken before arriving at a decision to include the same in the properties of the Accused Officer.

- (iv) The instructions issued in Memo.No.944/Spl.B/99-5, G.A.D., dt.01.04.2002 permitting the Vigilance Commissioner to deal directly with the Heads of Departments / District Collectors / Heads of District officers known as the appointing / appellate authorities in handling of vigilance and disciplinary cases, which were kept in abeyance in Memo.No.216/Spl.B/2002-1, G.A.D., dt.06.05.2002 shall be continued.
- (v) Investigating Agencies shall act in a fair, unbiased and objective manner in the course of searches, raids, surprise checks, assessment of properties, valuing of movable and immovable properties and arrests etc.
- (vi) The Investigating Agencies shall have a balanced and judicious approach, when a trap is attempted / disproportionate assets booked or a surprise check made.
- (vii) A periodical review at the level of Chief Secretary to Government shall be undertaken on the work of Investigating Agencies with particular reference to time taken at various stages to ensure that timely justice is rendered in all cases.